

26STCV08873 26STCV08873

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-20

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Case Number: 26STCV08873 Hearing Date: July 20, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu, Department 507

HEARING DATE: July 20, 2026 TRIAL

DATE: None

CASE: American Express National Bank v. Eric

Elizarraraz

CASE NO.: 26STCV08873

DEFAULT

JUDGMENT APPLICATION

MOVING PARTY: Plaintiff American Express National Bank

RESPONDING PARTY(S): None

PROOF

OF SERVICE:

Correct

Address: Yes

16/21

(CCP § 1005(b)): OK. Request for Entry of Default and Request for Court

Judgment form (CIV-100) mailed to Defendant on July 8, 2026.

CASE

HISTORY:

03/19/26:

Complaint filed.

05/14/26:

Defendant served with, inter alia, the summons and the complaint via substituted service.

07/09/26:

Default entered against Defendant and default judgment application filed.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a breach of contract action. On March 19, 2026, plaintiff American Express National Bank ("Plaintiff") filed a complaint against defendants Eric Elizarraraz ("Defendant") and DOES 1 to 10, inclusive, alleging a cause of action for Breach of Contract.

Plaintiff

alleges, inter alia, that "Plaintiff extended credit to Defendants for purchases and/or cash advances . . . [and] Defendant promised to repay Plaintiff for all charges, fees, and interest on the [a]ccount by paying the balance in full every month or by making monthly payments." (Compl. at p. PLD-C-001(1).) Defendant is alleged to have failed to make payments owed on the account. (Id.) Plaintiff alleges damages in the sum of \$63,938.64. (Compl. at p. 2.)

On July 9, 2026, at the request of Plaintiff, default was entered against Defendant. Also, on such date, DOES 1 to 10, inclusive, were dismissed at the request of Plaintiff.

Plaintiff

now moves for the entry of default judgment against Defendant.

TENTATIVE RULING:

Plaintiff's default judgment
application is GRANTED.